

Part V. Finance and services

No. 13

Ventures and Member Loans

Code

Cite this instrument as No. 13, Ventures and Member Loans.

29 September 2026

Summary

Three pots: a personal loan capped at \$5,000, business help capped at \$10,000 in a year, and a Nation venture with its own books.

A loan that can be forgiven by council alone is not a loan. Forgiveness takes a member vote.

Part 1. Three separate pots

1.1 Money under this instrument is one of three things. Mixing them in one account is a breach. The finance officer must split the accounts within 14 days of this instrument coming into force. If the accounts are still mixed on day 15, new loans and new venture payments stop until they are split.

Pot	What it is	Ceiling in this draft
Member loan	A personal loan that must be repaid	\$5,000 outstanding per member
Member business help	A contribution to a member's own business	\$10,000 in one financial year
Nation venture	A business owned by the First Nation	The spending instrument applies to every payment

1.2 The ceilings are draft amounts. Electors may change them before adoption. They are not a description of any loan already made.

Part 2. Member loans

2.1 A member may hold one loan at a time. The written agreement must state the amount, the 2 percent yearly interest if the budget sets no other rate, the monthly payment, and a term of not more than 24 months. There is no oral loan. A payment without a signed agreement is a debt of the person who paid it, due within 30 days.

2.2 The finance officer decides a complete application within 30 days, in writing, against the ceiling and the arrears rule. A councillor must not decide it. A decision by a councillor is void.

2.3 If a payment is missed, the finance officer must send a written notice within 14 days. After 60 days in arrears, the member receives no new loan. Set-off against a program payment is allowed only if the loan agreement says so. Set-off against a treaty annuity is prohibited. A staff member who sets off an annuity must reverse it within 7 days and must not handle loans for 1 year.

2.4 Council must not forgive a loan. Forgiveness passes only by a member vote: a majority of the votes cast, with at least 25 percent of the electors voting, on 21 days' notice. A council forgiveness is void, and the finance officer must restore the debt on the books within 7 days.

Part 3. Member business help

3.1 The applicant files a short plan: what the business does, what the money will buy, and how it will be recorded. A panel of the finance officer and two electors named by the appeal body decides within 45 days. Council does not decide. A council approval is void.

3.2 The recipient must file a one page report within 12 months: what was bought, and whether the business is still operating. A recipient who does not file is not eligible for another contribution until the report is filed. The finance officer must send a reminder 30 days before the due date.

Part 4. A Nation venture

4.1 A venture has its own books. The finance officer must post a quarterly result within 30 days of quarter end. A loss is not covered by a transfer from another pot unless the spending instrument is followed for that transfer. A quiet transfer is void and must be reversed within 14 days by the person who made it.

4.2 A venture must not hire the chief, a councillor, or their immediate family except under the family-contract rule in the spending instrument.

Part 5. Amendment

5.1 Council must not amend this ventures and loans instrument by resolution. A resolution that tries is void on the day it is signed. The appeal body must post that fact within 14 days.

5.2 The electoral officer posts the full text at least 30 days before the vote. A vote on shorter notice is void. The officer posts the count within 3 days.

5.3 The change passes if a majority of the votes cast are yes and at least 25 percent of the electors vote. A change that would remove a check named in the constitution passes only if a majority of all electors vote yes. If that count is not met, the change is void.

5.4 The text comes into force the day after the electors adopt it under this Part. It does not repeal a law already in force unless the electors also meet that law's own replacement rule.

5.5 The appeal body reviews the text every 4 years from that day and posts a written report within 60 days. The report does not change the text.